

Examples of common law defences recognized by Canadian courts are officially induced error of law, the voluntary intoxication defence to specific intent crimes and, as we shall see in this chapter, necessity, duress and entrapment.

2. AIR OF REALITY FOR DEFENCES

R. v. CINOUS

[2002] 2 S.C.R. 3, 49 C.R. (5th) 209, 162 C.C.C. (3d) 129,
2002 CarswellQue 261, 2002 CarswellQue 262 (S.C.C.)

Per MCLACHLIN C.J.C. and BASTARACHE J. (L'HEUREUX-DUBÉ, GONTHIER, BINNIE, LEBEL JJ. concurring): —

Air of Reality

The key issue is whether there was an air of reality to the defence of self-defence in this case. It is our view that there is no air of reality to the defence: a properly instructed jury acting reasonably could not acquit the accused on the ground of self-defence, even if it accepted his testimonial evidence as true. Since the defence should never have been put to the jury, any errors made in the charge to the jury relating to that defence are irrelevant. The curative proviso of s. 686(1)(b)(iii) should be applied, and the conviction upheld.

This court has considered the air of reality test on numerous occasions. The core elements of the test, as well as its nature and purpose, have by now been clearly and authoritatively set out. See *R. v. Osolin*, [1993] 4 S.C.R. 595, 86 C.C.C. (3d) 481, 109 D.L.R. (4th) 478; *R. v. Park*, [1995] 2 S.C.R. 836, 99 C.C.C. (3d) 1; *R. v. Davis*, [1999] 3 S.C.R. 759, 139 C.C.C. (3d) 193, 179 D.L.R. (4th) 385. Nevertheless, a controversy has arisen in this case concerning the extent of a trial judge's discretion to keep from a jury defences that are fanciful or far-fetched. More narrowly, the contentious issue is the correct evidential standard to be applied in determining whether there is an air of reality to the defence of self-defence on the facts of this case.

In our view, the controversy can be resolved on the basis of existing authority, which we consider to be decisive. The correct approach to the air of reality test is well established. The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit. See *Wu v. The King*, [1934] S.C.R. 609, 62 C.C.C. 90, [1934] 4 D.L.R. 459, *infra*; *R. v. Squire*, [1977] 2 S.C.R. 13, 29 C.C.C. (2d) 497, 69 D.L.R. (3d) 312; *Pappajohn v. The Queen*, [1980] 2 S.C.R. 120, 52 C.C.C. (2d) 481, 111 D.L.R. (3d) 1; *Osolin*, *supra*; *Park*, *supra*; *R. v. Finta*, [1994] 1 S.C.R. 701, 88 C.C.C. (3d) 417, 112 D.L.R. (4th) 513. This long-standing formulation of the threshold question for putting defences to the jury accords with the nature and purpose of the air of reality test. We consider that there is nothing to be gained by altering the current state of the law, in which a single clearly-stated test applies to all defences. See *Osolin*, *supra*; *Park*, *supra*; *Finta*, *supra*. There is no

need to invent a new test, to modify the current test, or to apply different tests to different classes of cases.

(1) The Basic Features of the Air of Reality Test

The principle that a defence should be put to a jury if and only if there is an evidential foundation for it has long been recognized by the common law. This venerable rule reflects the practical concern that allowing a defence to go to the jury in the absence of an evidential foundation would invite verdicts not supported by the evidence, serving only to confuse the jury and get in the way of a fair trial and true verdict. Following *Pappajohn, supra*, the inquiry into whether there is an evidential foundation for a defence is referred to as the air of reality test. See *Park, supra*, at para. 11.

The basic requirement of an evidential foundation for defences gives rise to two well-established principles. First, a trial judge must put to the jury all defences that arise on the facts, whether or not they have been specifically raised by an accused. Where there is an air of reality to a defence, it should go to the jury. Second, a trial judge has a positive duty to keep from the jury defences lacking an evidential foundation. A defence that lacks an air of reality should be kept from the jury. *Wu, supra; Squire, supra; Pappajohn, supra; Osolin, supra; Davis, supra*. This is so even when the defence lacking an air of reality represents the accused's only chance for an acquittal, as illustrated by *R. v. Latimer*, [2001] 1 S.C.R. 3, 2001 SCC 1, 150 C.C.C. (3d) 129, 193 D.L.R. (4th) 577.

It is trite law that the air of reality test imposes a burden on the accused that is merely evidential, rather than persuasive. Dickson C.J. drew attention to the distinction between these two types of burden in *R. v. Schwartz*, [1988] 2 S.C.R. 443 at p. 466, 45 C.C.C. (3d) 97, 55 D.L.R. (4th) 1:

Judges and academics have used a variety of terms to try to capture the distinction between the two types of burdens. The burden of establishing a case has been referred to as the "major burden," the "primary burden," the "legal burden" and the "persuasive burden". *The burden of putting an issue in play has been called the "minor burden," the "secondary burden," the "evidential burden," the "burden of going forward," and the "burden of adducing evidence."* [Emphasis added.]

The air of reality test is concerned only with whether or not a putative defence should be "put in play", that is, submitted to the jury for consideration. This idea was crucial to the finding in *Osolin* that the air of reality test is consistent with the presumption of innocence guaranteed by s. 11(d) of the *Canadian Charter of Rights and Freedoms*.

In applying the air of reality test, a trial judge considers the totality of the evidence, and assumes the evidence relied upon by the accused to be true. See *Osolin, supra; Park, supra*. The evidential foundation can be indicated by evidence emanating from the examination-in-chief or cross-examination of the accused, of defence witnesses, or of Crown witnesses. It can also rest upon the factual circumstances of the case or from any other evidential source on the

record. There is no requirement that the evidence be adduced by the accused. See *Osolin, supra*; *Park, supra*; *Davis, supra*.

The threshold determination by the trial judge is not aimed at deciding the substantive merits of the defence. That question is reserved for the jury. See *Finta, supra*; *R. v. Ewanchuk*, [1999] 1 S.C.R. 330, 131 C.C.C. (3d) 481, 169 D.L.R. (4th) 193. The trial judge does not make determinations about the credibility of witnesses, weigh the evidence, make findings of fact, or draw determinate factual inferences. See *R. v. Bulmer*, [1987] 1 S.C.R. 782, 33 C.C.C. (3d) 385, 39 D.L.R. (4th) 641; *Park, supra*. Nor is the air of reality test intended to assess whether the defence is likely, unlikely, somewhat likely, or very likely to succeed at the end of the day. The question for the trial judge is whether the evidence discloses a real issue to be decided by the jury, and not how the jury should ultimately decide the issue.

Whether or not there is an air of reality to a defence is a question of law, subject to appellate review. It is an error of law to put to the jury a defence lacking an air of reality, just as it is an error of law to keep from the jury a defence that has an air of reality. See *Osolin, supra*; *Park, supra*; *Davis, supra*. The statements that "there is an air of reality" to a defence and that a defence "lacks an air of reality" express a legal conclusion about the presence or absence of an evidential foundation for a defence.

The considerations discussed above have led this court to reject unequivocally the argument that the air of reality test licenses an encroachment by trial judges on the jury's traditional function as arbiter of fact. As Cory J. stated in *Osolin, supra*, at p. 682:

This is no more than an example of the basic division of tasks between judge and jury. It is the judge who must determine if evidence sought to be adduced is relevant and admissible. In the same way, it is the judge who determines if there is sufficient evidence adduced to give rise to the defence. If there has been sufficient evidence put forward, then the jury must be given the opportunity to consider that defence along with all the other evidence and other defences left with them in coming to their verdict.

Indeed, the air of reality inquiry has been found not only to be consistent with the traditional division of labour as between judge and jury, but actually to enhance the jury's ability to carry out its task. Again, Cory J.'s statement in *Osolin, supra*, at p. 683, is apposite:

The jury system has in general functioned exceptionally well. Its importance has been recognized in s. 11(f) of the *Charter*. One of the reasons it has functioned so very well is that trial judges have been able to direct the minds of jurors to the essential elements of the offence and to those defences which are applicable. That process should be maintained. The charge to the jury must be directed to the essential elements of the crime with which the accused is charged and defences to it. Speculative defences that are unfounded should not be presented to the jury. To do so would be wrong, confusing, and unnecessarily lengthen jury trials. [Emphasis added.]

This court has held on many occasions that a single air of reality test applies to all defences. *Osolin, supra*; *Park, supra*, at para. 12. The test has been

applied uniformly to a wide range of defences over the years. These include the defence of honest but mistaken belief in consent in sexual assault cases (*Pappajohn, supra*; *Bulmer, supra*; *Osolin, supra*; *Park, supra*; *R. v. Esau*, [1997] 2 S.C.R. 777, 116 C.C.C. (3d) 289, 148 D.L.R. (4th) 662; *Ewanchuk, supra*; *Davis, supra*), and other defences such as intoxication (*R. v. Robinson*, [1996] 1 S.C.R. 683, 105 C.C.C. (3d) 97, 133 D.L.R. (4th) 42; *R. v. Lemky*, [1996] 1 S.C.R. 757, 105 C.C.C. (3d) 137), necessity (*Latimer, supra*), duress (*R. v. Ruzic*, [2001] 1 S.C.R. 687, 2001 SCC 24, 153 C.C.C. (3d) 1, 197 D.L.R. (4th) 577), provocation (*R. v. Thibert*, [1996] 1 S.C.R. 37, 104 C.C.C. (3d) 1, 131 D.L.R. (4th) 675), and self-defence (*Brisson v. The Queen*, [1982] 2 S.C.R. 227, 69 C.C.C. (2d) 97, 139 D.L.R. (3d) 685; *R. v. Hebert*, [1996] 2 S.C.R. 272, 107 C.C.C. (3d) 42, 135 D.L.R. (4th) 577). Adopting different evidential standards for different classes of cases would constitute a sharp break with the authorities.